

Friends Land Developers v. State of U.P. — Clause 4.9 13th Amendment SPS-to-MPS challenge; Maxblis interim applied

High Court of Judicature at Allahabad · Division Bench · 20 December 2021 · WRIT - C No. 30926 of 2021 · **Maxblis order applied with tariff rider; connected and listed**

HEADNOTE

Pending a challenge to the Electricity Supply Code (13th Amendment), 2018 — amending clause 4.9 of the U.P. Electricity Supply Code, 2005 to convert Single Point Supply to Multi Point Supply — the Allahabad High Court made the order in connected Writ-C No. 4545 of 2019 (Maxblis Construction) operative for a similarly situated housing developer, with the rider that occupants of the multistorey towers be charged only as per the applicable tariff order for electricity supplied through the petitioner by the licensee. Vires was not decided; counter affidavits were directed and the petition was connected and listed.

FACTUAL SUMMARY

M/S Friends Land Developers, a registered partnership, developed the housing project "Gulmohar Greens" at 95, Katori Mill, Mohan Nagar, Ghaziabad, on a Single Point Supply design. Clause 4.9 of the U.P. Electricity Supply Code, 2005 was later amended by the Electricity Supply Code (13th Amendment), 2018 to convert all Single Point Supply to Multi Point Supply. The firm challenged that amendment as ultra vires Articles 14, 19(1)(g) and 300A. Counsel agreed the same issue was already before the Court in Writ-C No. 4545 of 2019 (Maxblis Construction).

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.9

single-point to multi-point conversion (13th Amendment); interim protection

HOLDING

Without deciding the vires of the 13th Amendment to clause 4.9, the Court made the order operating in Writ-C No. 4545 of 2019 (Maxblis Construction) operative in this petition, subject to the rider that the developer shall charge occupants of the multistorey towers only the tariff as per the applicable tariff order for electricity supplied through it by the licensee. Respondents were to file counter affidavits; the matter was connected with the Maxblis writ and listed after six weeks. ¶ 4

PRINCIPLE TAGS

clause-4.9-single-point-to-multipoint

Pending a vires challenge to the 13th Amendment of clause 4.9 converting Single Point Supply to Multi Point Supply, the Court extended the order in the lead Maxblis writ to this similarly situated developer, with a rider that occupants be charged only as per the applicable tariff order. Lead authorities: *M/S Maxblis Construction Pvt. Ltd. v. State of U.P.* ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY SUPPLY CODE (13TH AMENDMENT), 2018 AMENDING CLAUSE 4.9 (SINGLE POINT SUPPLY TO MULTI POINT SUPPLY) IS ULTRA VIRES ARTICLES 14, 19(1)(G) AND 300A

The Court applied the Maxblis order and connected the petition without deciding the constitutional challenge. ¶ 1-4

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/S Maxblis Construction Pvt. Ltd. v. State of U.P.</i> Writ-C No. 4545 of 2019			3-4	Referred

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.